X PRIVACY LAW

PRIVILEGED & CONFIDENTIAL — ATTORNEY-CLIENT COMMUNICATION

TO: ABC Father
FROM: X Privacy Law
DATE: November 10, 2026
RE: YouTube's collection of your 10-year-old son's personal information without parental consent

1. The Short Answer

If YouTube collected your son's name, gender, age, and home address while it knew (or should have known) he was under 13, and without first getting verifiable consent from you or his mother, that would very likely violate the federal **Children's Online Privacy Protection Act (COPPA)**, and could also violate California law. However, COPPA does **not** let parents sue directly; it is enforced by the Federal Trade Commission (FTC) and state Attorneys General. Your strongest *personal* legal claims would arise under California law (the California Constitution's right to privacy, the common-law privacy tort of "intrusion upon seclusion," and the Unfair Competition Law). A federal appeals court covering California has confirmed that these state claims can proceed even though COPPA itself does not allow private lawsuits. The key open question is **how** the information was collected and **what YouTube knew** about your son's age. We recommend a phased approach: gather and preserve evidence, file regulatory complaints, and then decide whether a lawsuit is worthwhile.

2. Facts and Assumptions

You and your son live in California. Your son is 10. You believe YouTube (owned by Google LLC) collected his name, gender, age, and address without either parent's consent. We do not yet know whether he used his own Google account, a parent's account, YouTube Kids, or a supervised account, or whether he entered a false birth date. These facts matter greatly, and this memo's conclusions may change once we review them.

3. Does YouTube's Conduct Violate the Law?

A. Federal law — COPPA (15 U.S.C. §§ 6501–6506; FTC Rule, 16 C.F.R. Part 312).

- **Who it covers:** operators of websites, apps, or services that are aimed at children under 13, *or* that have "actual knowledge" they are collecting information from a child under 13. YouTube hosts large amounts of content made for children and has been found by the FTC to know this.
- **What it protects:** "personal information," which expressly includes a child's first and last name and home address, plus online identifiers such as cookies and device IDs. Age and gender are covered when combined with those identifiers, as alleged here.
- **What it requires:** clear notice to parents and **verifiable parental consent before** collecting a child's information, limits on keeping it, and a parent's right to review and delete it. FTC rule amendments that took full effect in 2026 also require separate parental consent before a child's data is shared with third parties for advertising.
- **Our assessment:** collecting your son's name and address without consent is the core conduct COPPA forbids. YouTube's best defense is likely lack of knowledge — e.g., if your son created an account claiming to be over 13 on a general-audience part of the site. Because YouTube remains under a 2019 FTC court order (below), any new violation could expose it to substantial civil penalties (over $50,000 per violation, adjusted for inflation).

B. California law.

- **California Consumer Privacy Act (CCPA/CPRA), Civ. Code § 1798.100 et seq.** A business may not sell or share for targeted advertising the information of a child under 13 unless a parent affirmatively opts in (§ 1798.120(c)); "willful disregard" of a child's age counts as knowledge. You may also demand, on your son's behalf, to *know* what YouTube holds and to have it *deleted*. Limitation: individuals can sue under the CCPA only for data breaches; other violations are enforced by the Attorney General and the California Privacy Protection Agency, with increased fines (about $7,500+ per violation) where minors are involved.
- **California Constitution, Art. I, § 1 (right to privacy)** and the **intrusion upon seclusion** tort. Both apply to private companies and allow individual lawsuits. You must show a protected privacy interest, a reasonable expectation of privacy, and a serious or "highly offensive" intrusion. Secret collection of a young child's

identity and home address, in violation of a federal child-protection law, is a strong fact pattern.

- **Unfair Competition Law (UCL), Bus. & Prof. Code § 17200.** Prohibits "unlawful" business practices and can "borrow" a COPPA violation. However, an individual must show he lost money or property, which is difficult for free services; remedies are limited to injunctions and restitution.
- **Of limited help:** California's Age-Appropriate Design Code Act has been blocked by federal courts in *NetChoice v. Bonta* and, as of our latest review, cannot be enforced; CalOPPA (Bus. & Prof. Code § 22575) mainly requires an accurate privacy policy and adds little here.

C. What could help or hurt your case. *Helpful:* evidence that your son used a YouTube Kids or "made for kids" experience, that YouTube asked his age and he answered truthfully, or that his data was used for ads; the sensitivity of a child's home address; and YouTube's prior FTC history. *Harmful:* an account created with a false adult birth date, information entered through a parent's account, or a lack of proof of concrete harm (courts sometimes award only modest damages in privacy cases).

4. Key Cases and Precedents

Case	Why it matters to you
FTC & New York v. Google LLC & YouTube, LLC, No. 1:19-cv-02642 (D.D.C. 2019)	YouTube paid a record **$170 million** to settle charges that it collected children's persistent identifiers on child-directed channels without parental consent and used them for targeted ads. YouTube had to create the "made for kids" labeling system and is under a continuing court order. Shows the FTC treats YouTube as having knowledge of child viewers.
Jones v. Google LLC, 73 F.4th 636 (9th Cir. 2023)	The federal appeals court covering California held that COPPA does **not** block state-law privacy claims by children and parents that mirror COPPA's requirements. This is the most important case for you: it opens the door to California claims. The case (called *Hubbard v. Google* in the trial court) later produced a reported proposed class settlement of about $30 million for U.S. children under 13 who watched YouTube between 2013 and 2020.
In re Nickelodeon Consumer Privacy Litig., 827 F.3d 262 (3d Cir. 2016)	Allowed parents' intrusion-upon-seclusion claim against Viacom to proceed over the tracking of children, finding it was not preempted by COPPA — particularly where the company had promised not to collect such data.
In re Facebook, Inc. Internet Tracking Litig., 956 F.3d 589 (9th Cir. 2020)	Held that users whose data was secretly collected have standing to sue and may pursue California constitutional privacy and intrusion claims, even without proving a specific financial loss.
Hill v. NCAA, 7 Cal. 4th 1 (1994); ***Hernandez v. Hillsides***, 47 Cal. 4th 272 (2009)	California Supreme Court cases setting the test for privacy claims against private parties (protected interest, reasonable expectation, serious/highly offensive invasion).
Kwikset Corp. v. Superior Court, 51 Cal. 4th 310 (2011)	Requires a UCL plaintiff to show economic injury — the main hurdle for a UCL claim here.

5. Your Legal Options

Option	What it involves	Pros / Cons
1. Gather, preserve, and control the data	Download your son's data (Google Takeout / "My Activity"), screenshot account settings, and send a CCPA "right to know" request. We would send Google a letter demanding it preserve the records. After evidence is secured, request deletion and move your son to YouTube Kids or a parent-supervised account.	Free; fast; stops ongoing harm. No money recovered.
2. Regulatory complaints	File complaints with the FTC (ReportFraud.ftc.gov), the California Attorney General, and the California Privacy Protection Agency. Because YouTube is under a 2019 FTC order, regulators may treat new violations seriously.	Free; can produce large penalties and changes. You control neither the outcome nor timing; no personal compensation.
3. Existing class action	Check whether your son is a member of the *Hubbard/Jones* class (if he watched YouTube before April 2020) and the status of any claim or opt-out deadline. Staying in a class usually releases his individual claims for that period.	Little effort; modest payment likely. May bar a separate lawsuit for the covered period.

Option	What it involves	Pros / Cons
4. Demand letter / negotiated resolution	We send Google a formal demand citing COPPA, the CCPA, and California privacy law, seeking deletion, written confirmation, and compensation.	Low cost; may resolve quickly. Google may decline to pay.
5. Lawsuit (individual or class)	File on your son's behalf (you would serve as guardian ad litem) for invasion of privacy under the California Constitution, intrusion upon seclusion, the UCL, and possibly unjust enrichment. Remedies: damages, injunction, and possibly restitution. Google's terms generally call for California law and Santa Clara County courts.	Strongest leverage; but costly and slow, damages for one child may be modest, and the "knowledge" issue will be contested.

Time limits: California privacy claims generally must be filed within two years (UCL: four years), but California law usually pauses the deadline for claims belonging to a minor until he turns 18 (Code Civ. Proc. § 352). Class-action and regulatory deadlines are not paused, so prompt action is still important.

6. Our Recommendation and Next Steps

- **Now (next 2 weeks):** do not delete the account yet. Send us the account email, the date it was created, the birth date entered, the devices used, and any emails or screenshots showing what YouTube collected. We will submit the CCPA access request and a preservation letter to Google.
- **Next (30–60 days):** once we review Google's response, we will file regulatory complaints, confirm class-settlement eligibility, and request deletion of your son's data.
- **Then:** if the evidence shows YouTube knew your son was under 13 (or his data came from child-directed content), we will send a demand letter and advise you whether an individual or class lawsuit makes financial sense.

This memorandum is based on the limited facts you have provided and the law as we understand it as of the date above. Privacy law in this area is changing quickly, and our conclusions may change as we learn more. It is a confidential attorney-client communication; please do not forward it to others. Please contact us with any questions.